

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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TAMEL HUNT,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DEPUTY INSPECTOR DAVID
EHRENBERG AS THE COMANDING OFFICER OF THE
13TH PRECINT, P.O. FREDDY REYES, SHIELD # 7277,
P.O. MARTINS AND SERGEANT MACCHIO, SHIELD
1214,

Defendant(s).
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Index No.:
Date Purchased:
SUMMONS

Plaintiff designates New York
County as the place of trial

The basis of venue is:
PURSUANT TO CPLR 504(3)

Plaintiff resides at:

125 E. 168th Street Apt. 3E
Bronx, NY 10452

County of Bronx

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
April 25, 2014


RAYMOND E. GAZER
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
TAMEL HUNT
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 8750

TO: Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**DEPUTY INSPECTOR DAVID EHRENBERG AS THE
COMMANDING OFFICER OF THE 13TH PCT**
230 East 21st Street
New York, New York 10010

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VERIFIED COMPLAINT

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TAMEL HUNT, by his attorneys, GETZ & BRAVERMAN, P.C., respectfully alleges
as follows:

AS AND FOR A FIRST CAUSE OF ACTION

- (1) At all times mentioned, Plaintiff **TAMEL HUNT** was a resident of Bronx County, City and State of New York.
- (2) At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the Laws of the State of New York.
- (3) On or about the 17th day of January, 2014 and within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant **CITY OF NEW YORK**, by mailing certified mail return receipt requested a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

(4) At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

(5) The Plaintiff has complied with the oral examination pursuant to Section 50-H of the General Municipal Law on April 8, 2014.

(6) Upon information and belief, at all times mentioned, Defendants **COMMISSIONER RAYMOND KELLY IN HIS OFFICIAL CAPACITY, DEPUTY INSPECTOR DAVID EHRENBERGPAGAN AS THE COMMANDING OFFICER OF THE 13TH PCT., P.O. FREDDY REYES, SHIELD # 7277, P.O. MARTINS AND SERGEANT MACCHIO, SHIELD # 1214**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

(7) On or about November 26, 2012, in and around 20th and 7th Avenue, County of New York, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **TAMEL HUNT**, in an excessive manner about his person, causing his physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

(8) Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.

(9) On or about November 26, 2012, in and around 20th Street and 7th Avenue, County of New York, State of New York the Defendants jointly and severally did place Plaintiff **TAMEL HUNT**, in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to

physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

(10) Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.

(11) On or about November 26, 2014, in and around 20th Street and 7th Avenue, County of New York, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained his liberty, and then took him into custody to a police station in the County of the New York and there charged him with numerous crimes. The Plaintiff was thereafter held in custody over the course of approximately thirteen (13) months until he was released on his own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

(12) Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.

(13) On or about November 26, 2012, in and around 20th Street and 7th Avenue, County of New York, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the 13th Precinct, County of New York. The Plaintiff was thereafter held in custody over the course of approximately thirteen (13) months before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and at all times, the

Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

(14) Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.

(15) Upon information and belief, on or about November 26, 2012 and from that time until the dismissal of charges on or about December 5, 2013 which was a favorable termination for the accused by the New York Criminal Court, Defendants **CITY OF NEW YORK , P.O. FREDDY REYES, SHIELD # 7277, P.O. MARTINS AND SEARGEANT MACCHIO, SHIELD # 1214 OF THE 13th PCT.**, deliberately and maliciously prosecuted Plaintiff **TAMEL HUNT**, an innocent male without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, County of New York, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

(16) The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.

(17) As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A SIXTH CAUSE OF ACTION

(This Cause of Action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

(18) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in

Paragraphs "1" through "17" with full force and effect as though set forth at length herein.

(19) Defendants **P.O. FREDDY REYES, SHIELD # 7277, P.O. MARTINS AND SERGEANT MACCHIO, SHIELD # 1214 OF THE 13th PCT** were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

(20) At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

(21) Plaintiff **TAMEL HUNT** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

(22) The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.

(23) On or about November 26, 2012, the Defendants, armed police, while effectuating the seizure of Plaintiff **TAMEL HUNT**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.

(24) The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to her person;
- b. Freedom from battery to her person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;

- f. Freedom from the use of excessive force during the arrest process;
- g. Freedom from unlawful imprisonment.

(25) The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

(26) The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

(27) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein. (This Cause of Action applies to the City of New York and the officer sued in their official capacity should be characterized as a "*Monell*" claim.)

(28) Defendant **CITY OF NEW YORK, COMMISSIONER RAYMOND KELLY IN HIS OFFICIAL CAPACITY DEPUTY INSPECTOR DAVID EHRENBERG AS THE COMMANDING OFFICER OF THE 13TH PCT.**, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest must be based on probable cause.

(29) **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest and/or search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be

reasonable when an individual resists arrest and should be used where a criminal defendant is not resisting arrest.

(30) **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
2. Excessive force cannot be used against an individual who does not physically resist arrest.
3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
4. An individual such as the Plaintiff herein cannot be subjected to a strip search with cavity inspection unless the police possess legal cause and/or have a reasonable suspicion and/or probable cause that the plaintiff has secreted contraband in or on his person.

(31) The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to her person and denied her prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

(32) Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officers Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had

adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

(33) The defendants' deliberate indifference is further evident by and through the lack of meaningful investigation and punishment of transgressors. Upon information and belief, the NYPD Internal Affairs Bureau, "IAB", investigations rarely lead to administrative trials, and when they do, and the charges are somehow sustained, the punishment is minimal, thereby lacking any deterrent effect.

(34) Upon information and belief, officers operated with the tacit approval of their supervisors and up the ranks, with an "ends justifying the means" mentality. This mentality includes a custom or practice of stopping, or stopping and frisking first, then establishing reasonable suspicion after the fact. Use of force was viewed as collateral damage of the stop and frisk policy established by the NYPD.

(35) Police Officers were rarely, if ever brought up on charges, investigated or disciplined for their over aggressive application of stop and frisk policies and practices, including pursuits into homes, use of force or discharge of their weapons.

(36) Precinct commanders and supervisors were rarely, if ever, investigated, disciplined, reassigned or retained due to their own observations of misconduct, review of data or complaints from citizens for excessive use of force, 4th Amendment violations, illegal search and seizure, illegal entry into citizens' homes without a warrant, false arrests, witness intimidation, submitting false police reports and other constitutional rights violations occurring in their command, under their watch. In fact Procedural Code for Police Supervisors (for the NYPD) sets forth certain protections for police officers and restrictions placed on supervisors, all at the expense of the general public. They include:

- A. PG 205-46 which states that records of officers who engage in counseling services will not have any records duplicated or forwarded anywhere within the NYPD;

- B. If a supervisor officially refers a member of service for counseling, in non disciplinary cases, no report will be generated, no record of the referral will be noted in the member's personnel file and supervisors will only be advised as to the level of cooperation of the officer on a need to know basis (PG 205-46);
- C. Officers who participate in counseling services will not jeopardize assignments. Assignments will not be changed...unless a change is deemed appropriate for all parties.

(37) Thus, the City acted with deliberate indifference to the need to reform their customs and practices which included as stated herein rampant examples of constitutional violations of its citizenry, thereby lending tacit approval to the unconstitutional conduct. Upon information and belief, the City, Kelly and/or the named defendants herein, were more interested in meeting "numbers" than they were safeguarding the constitutional rights of its citizens.

(38) The acts of the police officers who violate the civil and constitutional rights of the citizens of New York routinely go unreported by fellow police officers, not investigated by their superior officers and consequently their acts, actions, omissions go unpunished. Failure to intervene and report is the norm, not the exception. In none of the cases cited in paragraph 100 a-n above did the police officers intervene in the face of misconduct; nor did they report the misconduct of their fellow officers or receive any punishment for having failed to do so. Consequently, the acts of police officers in which they use excessive force, engage in racial profiling, making or file false arrests and reports, make warrantless entry into citizens' homes, etc., are condoned by other officers present, their supervisors, precinct commanders, including Deputy Inspect David Ehrenberg.

(39) The City's and/or NYPD tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to "come down hard on quality of life infractions", leads to a systemic practice and policy wherein City officials seem fairly tolerant, both outwardly and inwardly of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, warrantless entry into citizens' homes and engage in arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops", but rather as outcasts and snitches and are isolated, ostracized and often transferred, thereby perpetuating the illegal conduct of the officers.

(40) Upon information and belief, arrest quotas and summons quotas, often couched by the defendants as "performance standards", are ingrained as a part of a NYPD officer's job, leading to shortcuts and violations of citizen's constitutional rights to meet those so called performance levels.

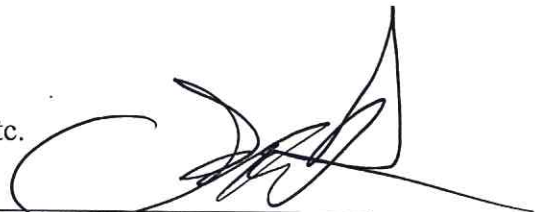
(41) In the matter of Dominguez v. City of New York, a lawsuit pending in Bronx Supreme Court under Index #305140-2011, a named defendant, Sgt. Karl Kindred of the Bronx Narcotics Division and a supervisor, stated under oath on April 19, 2013 at his deposition, see P. 32-37, that "all individuals who were merely present in an apartment would be arrested if it was pursuant to a search warrant", which clearly is not the law.

(42) Further evidence of a pattern, policy or custom is evidenced by a recent New York Daily News article dated May 19, 2013, documenting rampant police abuse where the officers involved were not disciplined in any meaningful manner but rather prompted to a higher position.

WHEREFORE, Plaintiff **TAMEL HUNT** demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Bronx, New York
April 25, 2014

Yours, etc.



RAYMOND E GAZER
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
TAMEL HUNT
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 8750

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK)

COUNTY OF BRONX)

SS:

James Hunt, being duly sworn, deposes and says:

I am the PLAINTIFF in the within action. I have read the foregoing *Summons and Complaint* and know the contents thereof and the same is true to my own knowledge, except as to those matters stated upon information and belief and as to the matters I believe them to be true.

(X) James Hunt

Sworn before me this

25 day of April 2014

[Signature]

NOTARY PUBLIC

Raymond E. Gazer
Notary Public State of New York
No. 02GA140860 Qualified in Queens County
Certificate filed in New York County
Commission Expires February 13, 2018

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SUMMONS AND VERIFIED COMPLAINT

GETZ & BRAVERMAN, P.C.

Attorneys for TAMEL HUNT

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TO: